OPEH LLC: supplied-file diligence dossier

▶ **Contents**

- Executive findings
- Source basis and reading boundaries
- Parties, capacity and collateral
- Instrument and procedural chronology
- Financial reconstruction
- Disposition, discrepancies and diligence limits
- Evidence guide and peripheral appendix

Executive findings

The supplied instrument documents one **$2,233,007 principal** with the source-named Michael E. Bleich and Alexis K. Bleich as personal makers and OPEH LLC as holder. The two makers, duplicate note files and repeated exhibits do not create separate principal amounts or establish equal shares. The note connects its tender to satisfaction and discharge of an Ophir Partners LLC corporate obligation in consideration of the makers' personal guaranty. The predecessor agreement, standalone guaranty and cash-funding trail are absent; neither an additional corporate principal nor a new personal cash advance is independently established. One-principal finding; note, page 1, predecessor recital, page 3.

OPEH sought $2,233,007 principal, $155,070 accrued interest, further interest from September 17, 2018 at 15%/$930.42 daily, and unquantified fees and costs. The base addition and cent-rounded per diem reconcile. The underlying interest period, rounding convention and operative default date remain unresolved. The arithmetic scenarios below explain the sensitivity without selecting a legally controlling method. Component checks, interest boundaries, calendar finding; motion, page 1.

The action ended by a notice of discontinuance without prejudice and without costs; the order marked the motion moot and case disposed. This is the supplied procedural result. The requested judgment was not a money award, and discontinuance does not establish payment, settlement consideration, release or a later balance. A December 2020 administrative mailing was expressly corrected as inadvertently sent to disposed matters. Disposition, administrative correction; order, notice, correction.

These findings have high confidence as characterizations of the supplied text and reproducible arithmetic. Confidence does not authenticate signatures, prove creditor allegations or resolve enforceability. Calculations cover the collective named-maker obligation; they do not establish identity with the regulated Michael Edward Bleich, CRD 4262671. Identity finding; makers and apparent execution.

Source basis and reading boundaries

This lane contains **21 source occurrences representing 20 unique documents**. The same note occurs under two filenames. The packet comprises the note, demand, summons, motion and annotated motion, affidavit, composite demand/note/counsel memorandum, RJI and two addendum versions, adjournment notice, disposition, two administrative notices, summons derivatives, a Harrison consolidation draft and three EDGAR-result CSVs. Source occurrences describe provenance; they do not count independent debts or independent corroboration. The note classification, composite classification and annotated-motion classification preserve those distinctions in the evidence catalog.

The strongest evidence of agreed wording is the note itself. The affidavit, demand and plaintiff memorandum express OPEH's position; filed status does not convert those allegations into court findings. The order and attached discontinuance establish the narrow procedural outcome. Drafts and search indexes remain peripheral. The main narrative covers all nine accepted financial finding themes and all 25 OPEH calculations; the scoped records catalog retains each calculation's exact result, dependencies, assumptions and status. Terms, creditor demand, disposition, draft status, index boundary.

Parties, capacity and collateral

The note names Michael E. Bleich and Alexis K. Bleich, described as husband and wife, at 13 Harrison Street, Unit 1, as "Makers." It names OPEH LLC, described as a Delaware LLC at 500 Park Avenue, as "Holder." The apparent execution page bears their names/signatures; authentication is not supplied. These are personal maker capacities within this instrument, without individual allocation of the collective principal. Shared names, address and apparent signatures provide no unique personal identifier resolving the regulated-person crosslink. Maker profile, identity finding; note, page 1, execution, page 4.

Aaron Sosnick describes himself as an OPEH member in the supporting affidavit; the packet does not establish sole ownership. The RJI identifies David Pfeffer of Tarter Krinsky & Drogin LLP for OPEH and marks the makers unrepresented, with issue not joined, as of filing. These are source-dated role statements. Sosnick role, RJI record; affidavit, page 1, RJI, page 2.

Section 2 recites a filed UCC-1 and grants security in the Harrison Street unit (Block 180, Lot 1351), collateral and proceeds. The underlying filing, perfection, current ownership and value are not independently established. Section 8 requires notification if a maker becomes subject to governmental investigation or proceedings; that covenant supplies no evidence that such an event occurred. Collateral qualification, covenant qualification; note, page 1, page 3.

Instrument and procedural chronology

Dates below retain their evidentiary kind: contractual dates, creditor accounting assertions, document execution dates, filing dates and later administrative events are distinct.

Date and kind	Source-supported event and limit
Undated predecessor recital	Ophir Partners LLC corporate obligation and makers' personal guaranty are described retrospectively; dates, amounts and independent instruments are absent. Predecessor event; note, page 3.
January 11, 2018 — note "as of" date	Sosnick separately alleges delivery on or about that date and a loan to defendants. The recital qualifies that description; the date does not independently prove cash funding. Note event; affidavit, page 2.
September 1, 2018 — scheduled maturity	Earlier sale/transfer can trigger maturity; payment due on a non-Business Day shifts to the subsequent Business Day. Earlier transfer is unknown. Maturity event; note, page 1.
September 17, 2018 — asserted accounting cutoff and requested start	Affidavit paragraphs 10–11 place asserted interest/principal as of this date; the motion seeks additional default interest from this date. Neither specifies the boundary convention. Accounting event; affidavit, page 3.
September 25–27, 2018 — demand, apparent execution, filing	Demand dated September 25; affidavit alleges delivery that day, appears sworn September 26; summons/motion filed September 27 under New York Supreme Court Index 654791/2018, seeking CPLR 3213 relief. Demand, affidavit execution, motion filing; summons.
October 17, 2018 — discontinuance notice date	Plaintiff discontinues without prejudice and without costs. Notice event; attachment.
November 20/28, 2018 — administrative notice/submission dates	Court notice dated November 20 adjourns motion 001 to November 28 for working copies; it records no monetary ruling. Adjournment; notice.
November 30 / December 3, 2018 — order date / filing date	Justice Andrea Masley marks motion moot and case disposed by attached discontinuance. The image confirms the dates despite noisy OCR. Order, filing; physical page.
December 9–10, 2020 — administrative mailing/correction	Voluntary neutral evaluation requires all-party consent; next-day correction says the notice was erroneously sent to disposed matters and no further action is required regarding disposed cases. Mailing, correction; correction page.

Financial reconstruction

Contract terms and notice limitations

Section 1 sets **10% per annum, compounded annually, actual/360** on outstanding principal. Section 7 supplies **15%**, likewise annually compounded and actual/360, while an Event of Default continues after cure. Payment defaults allow ten Business Days; other covenant defaults have ten Business Days after written notice. Acceleration separately requires delivered written election. These are readings of the clauses, without an enforceability determination. Terms finding; note, page 1, page 2.

Section 8 prescribes written notices at designated addresses by hand, recognized overnight service or certified mail with return receipt requested. Broad waivers in sections 5/16 coexist with express notice/election terms; section 16 excepts section 10 assignment notice. The demand's

“Via Federal Express” legend and Sosnick’s delivery assertion lack independent receipt/tracking. Payment cure, other-covenant notice, acceleration election and default interest remain distinct provisions; their interaction is unresolved. Notice finding; note, page 3, page 4, demand.

Source amounts and component arithmetic

Let **P = $2,233,007**. The demand states accrued interest **$155,070** and total **$2,388,077**; the affidavit dates that interest assertion to September 17. The motion adds the requested 15%/$930.42 daily accrual and collection costs without quantifying fees. Demand components, motion request, cutoff assertion; affidavit, page 3.

Check	Formula and result	Status
Demand addition	$2,233,007 + $155,070 = **$2,388,077**	Reconciled component only
Default daily amount	P × 0.15 ÷ 360 = $930.419583333… → **$930.42**	Reconciled to displayed per diem
Regular daily amount	P × 0.10 ÷ 360 = **$620.279722222…**	Conditional unchanged principal
One-day rate difference	P × (0.15 − 0.10) ÷ 360 = **$310.139861111…**, displayed $310.14	Conditional sensitivity

Interest boundaries and rounding

The accepted reconstruction uses Decimal precision 50 and declared rounding boundaries. It assumes unchanged principal, no payments/fees, January 11 accrual start and annual capitalization at the note-date anniversary. No anniversary occurs before September 27. Partial-year interest is linear actual/360, with no daily compounding or capitalization at maturity/rate switch. The note supplies no endpoint-inclusion or interim-rounding convention; creditor nonpayment assertions are not a transaction ledger. Interest finding; 249-day assumptions, two-rate assumptions.

Conditional branch	Calculation/result	Meaning
249 elapsed days	P × 10% × 249 ÷ 360 = **$154,449.65**, final cents	Claim minus exact result displays **$620.35**
250 date labels, counting both endpoints	P × 10% × 250 ÷ 360 = **$155,069.93**, final cents	Claim minus exact result displays **$0.07**
250 days, final whole dollars	$155,069.930555… → **$155,070**	Assumed final rounding can reproduce claim
250 days, daily cents first	ROUND_HALF_UP($620.279722…, cents) × 250 = **$155,070.00**	Assumed interim rounding can reproduce claim
249 days, daily cents first	$620.28 × 249 = **$154,449.72**	Daily rounding alone does not explain claim
Implied days diagnostic	$155,070 × 360 ÷ (P × 10%) = **250.000111956… days**	Algebraic diagnostic; incomplete economic lineage remains flagged

Possible numerical explanations do not establish the creditor’s actual method or an overcharge. If the base interest already includes September 17, additional interest “from” that date needs a nonoverlapping boundary explanation. The claimant worksheet is absent. Boundary finding; affidavit cutoff, motion start.

Calendar and rate-switch scenarios

September 1, 2018 was Saturday. “Business Day” excludes legal holidays and authorized New York bank closures as well as weekends. The following branches assume no earlier property transfer, exclude the due day in cure counting, allow the entire tenth Business Day and switch the rate the following calendar day. A complete applicable holiday/bank-closure calendar is missing. September 3 exclusion below is an explicit assumption. Calendar finding; note definition.

Regular-rate endpoint sensitivities are 233 elapsed days to September 1: **$144,525.18**, 235 days to September 3: **$145,765.73**, and 236 days to September 4: **$146,386.01**, each using P × 10% × days ÷ 360. These are conditional endpoint amounts, not established amounts due.

Branch through September 27 filing	Due / cure end / rate switch	Total interest	P + interest, excluding fees
Creditor’s asserted switch, independently recomputed base	Due/cure undetermined; September 17 switch	**$163,753.85**	**$2,396,760.85**
Weekdays only	September 3 / September 17 / September 18	**$163,443.71**	**$2,396,450.71**
Additionally exclude September 3	September 4 / September 18 / September 19	**$163,133.57**	**$2,396,140.57**

The two-rate formula is **P × 10% × regular days ÷ 360 + P × 15% × default days ÷ 360**. The respective day pairs are 249/10, 250/9 and 251/8; the shared boundary is counted once. Fifteen percent replaces ten percent during the default interval. Each one-day delay lowers this hypothetical accrual by $310.14 displayed. These branches expose calendar sensitivity and do not determine default. Calendar finding, rate difference.

A separate claimant-component branch carries the asserted $155,070 base and rounded $930.42 daily rate for ten elapsed days: **$155,070 + $930.42 × 10 = $164,374.20 interest** and **P + $164,374.20 = $2,397,381.20**, excluding fees. It assumes the base is available at September 17 opening without overlap. It is neither a filed total nor independent reconciliation. Claim-component interest, total.

Two proposals remain **not testable**, with null results: notice-dependent timing lacks verified receipt/election and applicable interval/construction; later balance lacks account history, payment applications, quantified fees, endpoint and any settlement/release terms. Across 25 calculations, two component checks reconcile, 21 numerical calculations are conditional, and two are not testable. No present-day accrual is inferred. The monetary scenarios end September 27, 2018; later administrative dates do not extend them. Notice finding, disposition, administrative correction.

Disposition, discrepancies and diligence limits

The order calls its attachment a “Stipulation of Discontinuance”; the attached document is titled “Notice of Discontinuance.” Preserve that textual difference without inferring an unseen settlement. The order’s moot/disposed result and notice’s without-prejudice/without-costs terms establish no money award or merits finding. The reason for discontinuance and later debt/payment status remain unknown. Disposition finding; order, attachment.

The most consequential unresolved inputs are the predecessor and guaranty instruments, funding/transaction ledger, claimant interest worksheet and boundary rules, earlier transfer history, legal holiday/bank-closure inputs, delivery proof, collateral filing/title information and any later payment/release documentation. Their absence limits the specific conclusions above; it does not itself establish breach, invalidity, payment or nonpayment. One principal, interest boundaries, calendar, notice, later-balance limit, collateral qualification.

The accepted cross-source assertions `prof-secondary-current-role` and `prof-regulatory-litigation-unresolved` are deferred scope items only. Their combined statements are not findings in this dossier. No combined Scout/OPEH argument is made; the in-lane identity finding retains the unresolved bridge without asserting that the two names necessarily denote different human beings.

Evidence guide and peripheral appendix

For contract review, begin with the four-page note, then compare the demand, affidavit paragraphs 8–14 and motion relief. Read the disposition with its attachment and the December 2020 correction. Record links throughout lead to the scoped source and calculation catalogs; exact values and conditional status remain available there.

The summons DOCX is a transcription; the TXT derivative contains filing stamps only. Neither should replace the supplied summons PDF when assessing its substance. The composite repeats note/demand material and includes plaintiff counsel's memorandum; its repetitions and the highlighted motion are not additional transactions. Summons-transcription classification, incomplete derivative, composite.

The supplied Harrison consolidation notice names Michael/Alexis Bleich opposite 13 Harrison LLC, Arnulf Damerau and the condominium board; it references Index 155721/2024. It has blank index/return date, counsel/firm placeholders and a 2025 date template. It is an unexecuted draft, establishing neither filing, consolidation nor ruling, and no identity bridge from name/property overlap. Draft profile; supplied text.

Three supplied EDGAR CSVs contain **27, 2 and 9 indexed filing references**. The larger index includes EntryPoint/Third Moment vehicles and other issuers; the two-row index names Ophir Partners Domestic L.P. and Ophir Partners Master Fund Ltd, with Form D dates of August 1, 2012; the nine-row index names Scout Trading LLC. These are attributed search-result metadata, not retrieved underlying filings or ownership/person-role evidence. No indexed URL was followed for this dossier. Index boundary; 27-reference index, Ophir index, nine-reference index.

Read source citations and qualifications alongside each record. External references are marked online and are not retrieved by this reader.